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Laboratories of Democratic Backsliding

THE TRUMP PRESIDENCY has generated new concerns about authoritarianism and democratic backsliding in the United States (Gessen 2016).¹ This concern comes in many flavors. Prominent think-tank moderates and Never-Trump conservatives express dismay at the erosion of parliamentary norms. Liberal Americans worry about the Trump coalition's apparent comfort with undemocratic and violent rhetoric toward its political opponents. Human rights activists point to increasingly authoritarian immigration policy. Nearly all of this concern has been directed at one level of government: national.

The crisis of democracy has also sparked new concerns among scholars. Recent research has focused on conceptualizing and measuring the health of American democracy (Dionne, Ornstein, and Mann 2017; Lieberman et al. 2019). Scholars of American politics, most of whom had considered American institutions to be so robust that the potential for backsliding was unnecessary to study, increasingly turned to comparative and historical scholars for insight. Prominent cross-national measures of democracy from the Varieties of Democracy Project (V-Dem), Bright Line Watch, and Freedom House now operate somewhat like the Doomsday Clock of the Cold War era.

Yet there has been no such systematic inquiry into *subnational* dynamics in American democracy. This lack of attention is curious in light of American federalism, an institutional system that gives state governments the authority to administer elections and other democratic processes. To the extent that thinkers have systematically addressed the role of federalism in this precarious

1. See also, for example, the September 2018 special issue of the *Atlantic* titled "Is Democracy Dying?"

period, it usually involves a reassertion of classic, optimistic theories about its importance in safeguarding institutions. Members of the conservative establishment argue that federalism mitigates the political frustrations of intense and polarized masses, allowing them a safety valve of local policy change while they are out of power at the national level (Levin 2017). Proponents of “progressive federalism” similarly suggest that federalism allows racial minorities to hold power in areas where they comprise majorities (Gerken 2012). Still others remind us that state governments, with their own authority clearly written into the U.S. Constitution, provide a check against a presidential power grab of all levers of authority in the American political system.

In many important ways indeed, governors, state legislators, and state judicial branches have challenged the actions of the Trump administration in areas such as climate and immigration. But faith in state governments betrays a tradition well known to scholars of race and ethnicity: state and local governments directly and indirectly enforced racial hierarchy for most of U.S. history (DuBois 1935; Foner 1988). In a broader sense, the United States was not a democracy until the national government enforced authority against state governments through the Voting Rights Act of 1965 (Mickey 2015; King 2017). More recent challenges to American democracy, such as the rise of mass incarceration and the carceral state (Soss and Weaver 2017), are also concentrated at the state level (Miller 2008). And in an uncanny pattern, recent threats of norm violations in the federal government are preceded by state governments having already violated the norm—whether it is court packing in Georgia in 2016 and Arizona in 2019,² the “lame-duck coups” in North Carolina and Wisconsin in 2016 and 2018,³ or attacks on labor rights in midwestern states in the 2010s.

In this chapter, I argue that state governments have been leaders in democratic backsliding in the United States in recent years.⁴ Although the national

2. Mark Joseph Stern, “Arizona’s Governor Is Leading Republicans’ Quiet, Radical Takeover of State Supreme Courts,” *Slate*, August 29, 2019, <https://slate.com/news-and-politics/2019/08/arizona-supreme-court-rigging-doug-ducey-bill-montgomery.html>; Kristina Torres, “Expansion of Georgia’s Supreme Court Wins Final Approval,” *Atlanta Journal-Constitution*, March 22, 2016, <https://www.ajc.com/news/state--regional-govt--politics/expansion-georgia-supreme-court-wins-final-approval/skmjVHCCo80HW4hXZKL6rM/>.

3. Tara Golshan, “North Carolina Republicans’ Shocking Power Grab, Explained,” *Vox*, December 16, 2016, <https://www.vox.com/policy-and-politics/2016/12/16/13971368/republican-power-grab-north-carolina-explained>.

4. Rather than a sharp break in regime type, this investigation asks about more granular changes to American democracy that in some ways parallels comparative analysis of “hybrid”

level may show troubling signs of diminishing democracy, state governments are *the* primary actors who administer democratic backsliding in practice and on the ground. State governments work directly and indirectly with national coalitions to use state institutions—easier to capture than national institutions—to their mutual benefit. Troubling stories abound in recent years of voter suppression, of gerrymandering, of state legislatures taking power from incoming outparty governors, of the use of state police powers to limit dissent. But there has been little effort to systematically trace the dynamics of democratic performance in the states in the contemporary period.⁵

How has democracy in the states expanded and contracted in recent years? I draw upon recent advancements in ideal point modeling to create a measure of democratic health in the fifty states from 2000 to 2018: the State Democracy Index. The measure is based on 61 indicators of democratic performance, such as states' voter registration policies, average wait times for voting,⁶ and the extent of partisan gerrymandering in states' legislative districts. While this measure cannot directly tell us what democratic performance would look like in a counterfactual United States with a unitary instead of federalist system, it illuminates important dynamics in American democracy across time and space.

The time-series estimates of state democratic performance show important trends. On average, state-level democracy is mostly stable since 2000—better than one might expect. Such aggregate stability, however, obscures major changes in democratic performance within states. While democracy is static or gradually expanding in many places, in some states, such as North Carolina, I find precipitous drops in democratic performance after 2010. The State Democracy Index, publicly available at jakegrumbach.com, will be of use to scholars and journalists interested in monitoring the front lines in the ongoing battle over American democracy.

Just as slavery and Jim Crow in the U.S. South affected the politics and society of the North, democratic backsliding in states like North Carolina and

regimes that combine elements of democracy with those of authoritarianism and oligarchy (e.g., Levitsky and Way 2010).

5. Hasen (2020) provides analysis of the causes of distrust in U.S. elections, voter suppression and “incompetence” in electoral administration, both of which are state-level phenomena. Widespread distrust in the fairness of election outcomes, Hasen argues, could result in an “election meltdown” and constitutional crisis.

6. For more on voting wait times, see the work of Chen et al. (forthcoming), who, using smartphone data, find that Black Americans face significantly longer wait times to vote than white Americans.

Wisconsin affects other states and, more importantly, democracy in the United States as a whole. State authorities administer elections; they are the primary enforcers of laws; they determine in large part who can participate in American politics, and how. The policy and judicial landscapes have grown increasingly favorable for policy variation across states in recent years. As a consequence, states may be increasingly important to trends in democracy across all institutions within American federalism. Political scholars, observers, and participants should pay close attention to dynamics in state democracy.

Federalism as Democracy-Expanding

The Benefits of Decentralization

In recent years, conservative pundits and thinkers have routinely invoked federalism as the solution to troubles in American democracy (e.g., Buckley 2014; Levin 2017). David Brooks is characteristic of this trend, arguing in 2018 that whereas “federal power is impersonal, abstract and rule-oriented, local power is personalistic, relational, affectionate, irregular and based on a shared history of reciprocity and trust.”⁷

Mainstream political scientists and legal scholars have often argued the same (Hills 1998; Roe 2003; March and Olsen 2010). Political theorist Samuel Beer (1978) prominently argued that the Founders’ *main purpose* in federalism was to create institutions that “closely and actively joined voter and representative” (10). Jenna Bednar (2005, 193) considers “effective representation” to be one of the main objectives of choosing a federalist institutional structure.

Political economists joined in with formal theories of politics as a “marketplace,” in which the threat of exit—“voting with your feet”—produces more responsive and effective governance (Tiebout 1956; Oates 1972; Sinn 1992). Although some of these political economists expressed skepticism toward majoritarianism and democracy itself, the theory of the political marketplace, combined with Louis Brandeis’s laboratories of democracy discussed earlier in this book, suggested that authority for the states should lead to an improved relationship between citizens and policymakers. Empirical scholars of comparative politics have also suggested that federalism eases the transition into democracy (Stepan 1999; Gibson 2004).

7. David Brooks, “The Localist Revolution,” *New York Times*, July 20, 2018, <https://www.nytimes.com/2018/07/19/opinion/national-politics-localism-populism.html>.

Whereas many scholars of race, as well as William Riker, argue forcefully that federalism has empowered racist coalitions, some mainstream political scientists suggested on the contrary that federalism was a boon for civil rights (Beer 1978, 16–17). The writing of Carl Lawrence Paulus (2019) encapsulates this argument: “Without federalism—or as it is often labeled, states’ rights,” he argues, “political abolitionism would never have gotten the oxygen needed to light a fire for freedom nationally.” This emphasis on federalism’s ability to provide national minorities and civil rights proponents one or more states to serve as a springboard is also an important component of a more liberal version of this theoretical tradition: *progressive federalism*.

Progressive Federalism

“Decentralization can produce a healthier democracy in the long term,” writes Heather Gerken (2012). Distinct from rational choice and economic theories of federalism, Gerken describes a *progressive federalism* with two major benefits. First, decentralization enables racial, ethnic, and religious minority groups to “rule” in places where they are in the majority. Such a situation, supporters argue, facilitates the “politics of recognition,” in which different identities and cultures are respected in a multicultural polity. Second, federalism’s decentralization facilitates, protects, and legitimates dissent by providing constitutional authority to subregions of the country, some of which are likely at any given time to dissent against the direction of national policy.

One area of success for progressive federalism, scholars argue, is in the politics of immigration and citizenship. In their book *Citizenship Reimagined*, Allan Colbern and Karthick Ramakrishnan (2020, 4) document the emergence of “progressive state citizenship,” in which “states provide rights and protections that exceed those at the national level.” While the national government formally determines questions of legal citizenship, immigration policies in states like California have meaningfully affected the legal, economic, and civic inclusion of immigrants. The authors make clear that strong federal enforcement of equal protection under law via the Fourteenth Amendment is critical to avoiding “regressive federalism” but argue that the “current trend in progressive federalism . . . runs counter to the historical narrative of federalism as one that empowers states and localities to block national progress and entrench regressive racial orders” (Colbern and Ramakrishnan 2020, 11).

In the age of Trump, such a theory is alluring. Timothy Egan (2019), writing for the *New York Times*, exclaims that “California, Oregon and Washington are

winning the fight against Trump’s hateful policies.” This is the system working. Federalism is a safety valve that Democrats and liberals, as well as marginalized identity groups, can use while out of national power. Furthermore, if these blue state policy experiments are effective and popular in practice, they serve as examples for voters and officeholders of other states—laboratories of democracy in action.

Proponents of progressive federalism discuss *spillovers*, in which the effects of state policy reverberate outside of its borders (Gerken and Revesz 2012). Although such scholars are well aware of cases of problematic spillovers, such as people who cross state lines to buy easy-to-access guns, they argue that, on balance, these spillovers have been effective at solving social problems. California’s large share of the automobile market, for instance, meant that the state’s emission standards affected car production across the country.⁸

Overall, progressive federalism shares much with traditional theories of decentralization. However, progressive federalists note that the benefits of federalism may require a more robust national government than would be optimal under the traditional theories. As Gerken (2012) writes:

The federalism that haunts our history looks quite different from the form of local power that prevails now. Federalism of old involved states’ rights, a trump card to protect instances of local oppression. Today’s federalism involves a muscular national government that makes policy in virtually every area that was once relegated to state and local governments. The states’ rights trump card has all but disappeared, which means that the national government can protect racial minorities and dissenters when it needs to while allowing local forms of power to flourish.

But is the United States truly past “the federalism that haunts our history”? In the next section, I turn to more troubling theories of the role of federalism in democracy.

Federalism as Democracy-Contracting

As Corey Robin (2020) has argued, a silver lining of the 2016 and 2020 presidential elections is that they pushed scholars from the question of “What’s the matter with the voters?” to “What’s the matter with the institutions?” Indirectly,

8. Spillovers, the progressive federalism story goes, also generate new opportunities for bipartisan compromise. Spillovers “force the issue,” no longer allowing state politics and policy to exist in isolation. But a unitary system might simply “force the issue” earlier.

this trend has increased scholars' concern about federalism—especially its countermajoritarian functions. But not much of the concern is about federalism directly. Federalism is historically related to, but distinct from, other undemocratic elements of U.S. constitutional design, such as the Electoral College and malapportionment in the U.S. Congress. The Electoral College empowers state legislatures, not voters, to appoint electors, which, if their state government allows, can use the state's Electoral College votes as they wish, potentially ignoring presidential election voters entirely (an institutional feature that became especially concerning in 2020).⁹ Also historically related to federalism, the Constitution's two-Senate-seats-per-state design has led to severely unequal say in Congress based on voter geography (Dahl 2003; McAuliffe 2019). It is quite possible that malapportionment in Congress, stemming from a combination of geography and the Three Fifths Clause, delayed the end of slavery in the United States, as the North had more voters but fewer seats until the Republican victories of 1860.¹⁰

Federalism is also the direct and indirect source of veto points in the American constitutional structure. This may hold back democracy by increasing the number of veto players in the political system, causing more frequent policy stasis and status quo bias. In the words of Edward Gibson and Desmond King (2016, 24), “Fights about federalism are inseparable from fights about democracy in U.S. political history because federalism impedes reform.” Rules that make it more difficult for any actor to change laws are asymmetrically problematic for people who are suffering under the status quo.

But here I focus more centrally on federalism's endowment of authority to state governments and how this state-level authority is used to expand or contract democracy in the United States. As I argued earlier, federalism may advantage groups for which money is the primary political resource. Business and the wealthy can more credibly threaten to reduce investment in a state, and they can more effectively influence the politics of states in which they do not live. In this chapter, I focus not on the social and economic policy outcomes that various groups seek, such as taxes or environmental regulation, but rather on the laws and socioeconomic conditions that are conducive to democracy itself.

9. Federalism looms large in legal and theoretical defenses of the Electoral College, as seen, for instance, in legal scholar Robert Hardaway's 1994 book *The Electoral College and the Constitution: The Case for Preserving Federalism*.

10. Judicial perspectives based in federalism may have also contributed to jurisprudence that further entrenched slavery (Maltz 1992).

If states are easier targets for concentrated interests in American society—those groups who stand to benefit most from a weaker American democracy—then it matters greatly that states have authority over areas of law that are critical to democracy. As we saw in chapter 3, state governments have grown in policymaking importance across a wide range of policy areas since the 1970s; policy differences between states are greater than they were a generation ago. But among the most profound policy decisions in the states are those that shape what democracy, itself, looks like in practice. States administer elections, deciding who is eligible and able to vote. And they control the vast majority of policing and the carceral state (Miller 2008), deciding who is free and who is a ward of the state. As Steven Levitsky and Daniel Ziblatt (2018, 2) write in *How Democracies Die*, “American states, which were once praised by the great jurist Louis Brandeis as ‘laboratories of democracy,’ are in danger of becoming laboratories of authoritarianism as those in power rewrite electoral rules, redraw constituencies, and even rescind voting rights to ensure that they do not lose.”

Thus, in the system of American federalism, even when *national* actors are interested in narrowing democracy, they describe strategies involving *state-level* authorities. In 2019, for instance, the Associated Press obtained a recording of an advisor to President Trump outlining a strategy for Wisconsin Republicans in state government to suppress Democratic votes, describing that “it’s always been Republicans suppressing votes in places. . . . Let’s start protecting our voters. We know where they are. . . . Let’s start playing offense a little bit” (quoted in Bauer 2019). The inverse occurs as well. In 2020, Kansas Senate president Susan Wagle implored Republican donors to contribute to state legislative candidates so they could maintain a veto-proof majority that would gerrymander Democrat Sharice Davids out of her federal U.S. House seat.¹¹ Investigative journalists have chronicled a plethora of similar statements from officials, as well as qualitative evidence of voter suppression on the ground. Studies have begun to look at the electoral effects of democratically important state-level variables, such as gerrymandering (Stephanopoulos and Warshaw 2020) and voter ID laws (Grimmer and Yoder 2019).

Black Americans have historically looked to the federal government for relief from state-level authoritarianism and exclusion. Activists called on federal authorities to take action against states—first to abolish slavery (Fields 1990; Foner 1995) and later to dismantle state and local systems of lynch law (Wells-Barnett 1892), segregation, disenfranchisement, and exclusion during

11. Smith, “Kansas Senate President Pushes Redistricting Plan.”

the Jim Crow period (Johnson 2010; Mickey 2015). Riker (1964, 155) offers a critical view of federalism in this respect, arguing that “if one disapproves of racism, one should disapprove of federalism. . . . All that federalism ever did was to facilitate the expression of racist beliefs and the perpetuation of racist acts.” Gibson and King (2016) argue that the “Second Reconstruction” of the civil rights period was more successful than nineteenth-century Reconstruction primarily because the former occurred in the context of a balance in federalism that had shifted from the state to the national level.

The empirical analysis in this book does not tell us directly whether a unitary rather than federalist United States would produce a healthier democratic republic. The United States is but one case, and it has had federalism (albeit in changing forms) since its founding. What this analysis can speak to, however, are the profoundly important state-level changes in democratic performance in recent years—and their causes.

Measuring Democracy

Conceptualizing Democracy

Democracy is a broad concept, so a helpful way to get conceptual traction is to break its definition into component parts.¹² Mainstream scholars of American politics have tended to conceptualize democracy through the lenses of *elections* and public opinion most prominently. This is the case among quantitative American politics and political economy scholars (e.g., Downs 1957; Lax and Phillips 2012; Gilens and Page 2014; Achen and Bartels 2016), but earlier qualitative Americanists also put their main focus on elections and how they translate into legislative seats (e.g., Dahl 2003).¹³

In this Americanist tradition, electoral policies and outcomes help serve as indicators for how democracy is performing. Some of these are policies and

12. Conceptualizing subcomponents of democracy, such as “electoral democracy” or “liberal democracy,” is distinct from the conceptualization of “diminished subtypes” of democracy in some comparative research (Collier and Levitsky 1997, 439). Electoral democracy as a diminished subtype implies that a polity has free, fair, and legitimate elections but lacks other necessary components to make it a “full” democracy, such as civil liberties, much like the diminished subtype concept of “male democracy” contrasts with polities that extend democratic citizenship to both men and women. Thus, the conceptualization of electoral democracy as a subcomponent means it takes us “up” the ladder of generality (Sartori 1970), applying to more cases, whereas its conceptualization as a diminished subtype takes us “down” the ladder of generality.

13. A focus on leaders in “competition for votes” is also central to Schumpeter 1942.

procedures that set the rules of the game. Election laws can make it easy and simple, or difficult and costly, for members of the polity to exercise their most important form of political participation, their vote. Districts can be gerrymandered, compacting and diluting votes in ways to make their influence over who serves in office highly unequal.¹⁴ Other indicators of democratic performance are not rules about democratic inputs but rather measures of democratic outputs. Prominently, a bevy of studies has investigated the correspondence between the policy and ideological attitudes of constituents on the one hand and politician behavior and policy outcomes on the other (e.g., Erikson, Wright, and McIver 1993; Gilens 2012; Lax and Phillips 2012; Caughey and Warshaw 2018).

However, other intellectual traditions have relied on broader conceptualizations of democracy. Comparativists, with the help of their cross-national focus, have studied the causes and consequences of democratic transitions across time and space. With a wider geographic and temporal focus, comparativists have put in considerable effort to conceptualize—and measure—democracy and democratic performance. Most prominently, the V-Dem group has conceptualized five different components of democracy: elections, liberalism, participation, deliberation, and egalitarianism. I draw on this conceptual mapping heavily. (As you will see later in the “Measuring Democracy” section, I draw upon their measurement strategy as well.) Such a conceptualization of democracy draws especially on historical institutionalism and democratic theory. Major works from democratic theorists such as Robert Dahl (2008) and Ian Shapiro (2009) reviewed changing understandings of democracy throughout history, such as the deliberative principles of Jürgen Habermas (1992) and John Rawls.

Democracy requires rights, which limit what electoral and legislative majorities can do (Estlund 2009; Brettschneider 2010). This is the *liberalism* component. The most important rights in the liberalism tradition are usually negative rights, that is, freedom from state encroachment in rights to speech, association, belief, and other areas. The democratic component of liberalism is especially concerned that a “tyranny of the majority” would violate the rights of

14. The Mississippi Constitution, for instance, requires that the governor win not only the majority of the statewide popular vote but also a plurality of votes in a majority of the state’s legislative districts; if a gubernatorial candidate does not meet these thresholds, the Mississippi State House selects the winner. The purpose of this institutional feature was clear in the 1890 convention that ratified the constitution. Mississippi’s constitutional “founding father” James K. Vardaman, who went on to serve as governor and then U.S. senator, proclaimed that “Mississippi’s constitutional convention of 1890 was held for no other purpose than to eliminate the n****r from politics.”

minorities. Shapiro (2009) suggested that “nondenomination,” itself closely related to liberalism, be a key tenet of democracy.¹⁵ Feminist theories of liberal democracy suggest that reproductive rights are necessary for women to be equal democratic citizens (Phillips 1991; Craske, Molyneux, and Afshar 2002).

There have been important critiques of liberalism, however, that it has in practice depended on national prosperity derived from imperialism, racial exploitation, and the exclusion of nonwhite peoples (Mills 2017). To varying degrees, scholars in the liberal tradition have addressed such critiques by emphasizing *equality* of those rights under law—and the realization of rights in practice. Rogers Smith (1993) emphasized that the disconnect between the liberal understandings of American democracy and historical race and gender hierarchies necessitates the tracing of “multiple traditions” in American civic identity. Desmond King (2009) extended this idea, suggesting that dynamics in American democracy could be illuminated by looking at immigration policy and which people it determined to be full members of the polity.

These debates over liberalism help to conceptualize the *egalitarianism* component of democracy. To what extent is egalitarianism integral to democracy, and what kinds of equality are most important? Some, such as the scholars just mentioned, tend to be focused on the realization of equal *de jure* rights. But democracy may depend on both procedural rules and substantive outcomes (Brettschneider 2010). Scholars of social democracy, including many comparative politics scholars, include positive social and economic rights as central to democracy. V-Dem, for instance, considers the equal distribution of resources, “both tangible and intangible,” to be an element of egalitarianism and important for democracy.¹⁶ The egalitarian focus is further related to organizational and relational conceptualizations of democracy (Han 2016, 2017). Voluntarism in civil society organizations has been central to understandings of democracy, and especially American democracy, since at least de Tocqueville. As Theda Skocpol, Marshall Ganz, and Ziad Munson (2000, 527) describe, “associations have provided paths into active citizenship, allowing Americans to build community, pursue shared goals, and influence social and political affairs.”

15. More conservative theorists have also suggested that protecting the owners of capital is also an important minority consideration (North 1981; Weingast 2016).

16. A wrinkle, however, is the potential for the rise of the bourgeoisie to be a mechanism toward democratization. It may be that incumbent elites expand democracy to provide concessions not to the poor but to the rising “new money” upper class—whose emergence is associated with higher, not lower, economic inequality (Ansell and Samuels 2014). My focus in this book, however, is on a mature democracy, the United States, with levels of income and wealth inequality larger than those of virtually any society in history (Hacker and Pierson 2010; Piketty 2014).

But perhaps most importantly, the centrality of chattel slavery and racial hierarchy to the history of the United States has led American scholars across a variety of disciplines to focus explicitly on the rights and equities of African Americans as key markers of democratic performance (Foner 1988; Shelby 2005). Such analysis has broadly investigated racial democracy in terms of the right to vote (e.g., Kousser 1974), civil liberties (e.g., Francis 2014), and the distribution of social and economic capital (e.g., DuBois 1935; Glaude 2017). Further research has linked institutional racism and authoritarianism, in both the Jim Crow era of pervasive lynching (Mickey 2015) and the post-civil rights era (Parker and Towler 2019). The continuing political significance of race prompts me to consider *racial equity* a central component of democracy, especially in the American context. In the state democracy measures I create, I include some direct indicators of racial inequality as determinants of state-level democratic performance, though many race-neutral democracy indicators reflect a racialized politics (e.g., gerrymandered district lines).

The multitiered federalist institutional structure of the United States presents an additional conceptual challenge to investigating the democratic performance of states. This idea is related but not identical to what Gibson (2005, 103) has described as the potential for “an authoritarian province in a nationally democratic country” (see also Gibson 2013). Not only are states not separate, atomized polities from each other horizontally; they are embedded in complex relationships with the federal government vertically in a structure resembling more of a “marble cake” than the “layer cake” of classical dual federalism (Weissert 2011). The particular way the cake is marbled is also in flux, changing dynamically based on the preferences of coalitions (Riker 1964, 1975). More specific to this chapter’s inquiry into democracy, state governments may act in ways that expand or contract democracy, but only dependent on federal activity. For example, the Supreme Court in *Shelby County v. Holder* (2013) struck down key provisions of the Voting Rights Act, allowing states to implement changes to electoral procedures in ways that threaten the freeness and fairness of elections.¹⁷

The richest dive into the democratic performance of states in recent years has been that of Michener (2018), who points to individuals’ interactions and experiences with state government as central to democratic performance. This book takes a related but distinct route in empirically investigating democracy

17. Quantitative studies buttress historical research showing that the Voting Rights Act had profound effects on legislative responsiveness to Black voters (Schuit and Rogowski 2017) and on racial inequality in labor market outcomes (Aneja and Avenancio-León 2019).

in the states, addressing de jure laws (e.g., election law), implementation (e.g., gerrymandering), and observed democratic outcomes (e.g., the correspondence between opinion and policy) over time. The next section discusses in further detail how I operationalize democracy.

Operationalizing Democracy

As the preceding section implies, there is no easy or consensus strategy to operationalize democracy in a quantitative study. I thus created two distinct measures of democratic performance in the states, each of which speaks to a different intellectual tradition of studying American democracy. The first measure, the State Democracy Index, characterizes the health of democracy in the states more narrowly based on the freeness and fairness of their elections and the strength of their civil liberties. A second measure, which I use in the appendix, combines the electoral indicators from the State Democracy Index with a large number of additional indicators that make up other democratic components (e.g., liberalism, egalitarianism, racial equity, and representation).

Importantly, democratic performance is conceptually distinct from “policy liberalism” (Caughey and Warshaw 2016), “size of government” (Garand 1988), and other concepts that capture the left-right orientation of policy outcomes across political systems. One might worry that ideological and partisan considerations influence the definition of democracy, which would lead to a tautological study of the causes of democratic changes. However, the main measure in this and the next chapter, with a focus on electoral and liberal democracy, is narrowly defined around indicators related to the cost of voting, fairness of districting, and basic civil liberties that are considerably more minimal than the definitions often found in comparative democracy research (e.g., V-Dem 2014). Furthermore, defining democracy as to ensure the definition is bipartisan puts democracy research at greater risk of tautology and the “argument from middle ground” fallacy or, in contemporary parlance, “bothsiderism.”

Democracy Indicators

These *democracy indicators* are individual variables that we aggregate into the State Democracy Index measure. Forty-seven of these variables are indicators related to electoral democracy, such as felon disenfranchisement and measures of gerrymandering. Felon disenfranchisement and prisoner voting policies were collected from the National Conference of State Legislatures (NCSL). Data on same-day voter registration, early voting, voter ID laws,

youth preregistration, no-fault absentee voting, and automatic voter registration are from Grumbach and Hill (forthcoming).¹⁸

Additional electoral variables, especially indicators of state administrative performance in elections, are from the MIT Election Lab.¹⁹ Gerrymandering data, which feature prominently in the democracy indices, are provided by Stephanopoulos and Warshaw 2020, with an additional district compactness variable from Kaufman, King, and Komisarchik 2021.²⁰ We also use indicators of policy responsiveness to public opinion (separated into social and economic policy domains) based on the state policy and mass public liberalism measures from Caughey and Warshaw 2018.²¹ Importantly, some of these indicators capture *de jure* electoral policies and procedures, such as voter registration laws, while others measure democratic *outcomes* like policy responsiveness to public opinion and voting wait times.

Indicators covering liberal democracy and freedom from authoritarian control come from additional sources. Indicators related to criminal justice are from the Correlates of State Policy Database (Jordan and Grossmann 2016), as well as the Bureau of Justice Statistics and Institute for Justice. We also include state asset forfeiture ratings by the Institute for Justice “Policing for Profit” data set.²² We list all 61 indicators and their sources in table 7.1.

18. There has been recent debate about the importance of voter suppression laws in the United States. In particular, there is evidence that voter ID laws might have limited effects on turnout (Cantoni and Pons 2021). High-performing electoral democracies, such as in northern Europe, also require government-issued identification to vote. However, these countries tend to have universal national (often compulsory) identification policies and provide significant exceptions to the ID rule. Voter ID laws’ limited effect on turnout might also have been due to counteractive mobilization efforts by organizations (Cantoni and Pons 2021). Additional evidence from Texas suggests that many thousands of voters, disproportionately Black and Latino, would have been disenfranchised if not for a hardship exception in the state’s law—a provision that strict ID states do not have (Fraga and Miller, forthcoming). But overall, the criterion for voter ID or any other law to be considered “voter suppression” is whether it increases the individual cost of voting overall or for a subgroup of Americans, not whether its average treatment effect estimate is near-zero (Zhang, forthcoming).

19. Available at electionlab.mit.edu/data.

20. Indicators of gerrymandering that measure one of the two parties’ advantage (e.g., efficiency gap) are transformed into their absolute values to measure the extent of partisan advantage in either direction.

21. Specifically, we use the squared residuals from a bivariate regression of state policy liberalism on state opinion liberalism, which capture how “out of step” a state’s policy is with its residents’ policy attitudes.

22. Available at <https://ij.org/report/policing-for-profit-3/policing-for-profit-data/>.

TABLE 7.1. Democracy Indicators

Indicator	Source
Asset forfeiture grade	Institute for Justice
Automatic voter registration	Grumbach and Hill, forthcoming
Black incarceration rate	Bureau of Justice Statistics
Criminalization of forms of protest	International Center for Not-for-Profit Law
Determinate sentencing	Grumbach 2018
District compactness	Kaufman, King, and Komisarchik 2019
DNA exoneration	Correlates of State Policy
Early voting	Correlates of State Policy
Election data completeness	MIT Election Lab
Felony disenfranchisement	Correlates of State Policy
Gerrymandering: declination (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: declination (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (Cong.-Pres)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: efficiency gap (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: mean-median difference (state leg.-pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (Cong.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (Cong.-Pres.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (state leg.)	Stephanopolous and Warshaw 2020
Gerrymandering: partisan symmetry (state leg.-pres.)	Stephanopolous and Warshaw 2020
Incarceration rate	Bureau of Justice Statistics
Military and overseas ballots not returned	MIT Election Lab
Military and overseas ballots rejected	MIT Election Lab
No-fault absentee voting	Correlates of State Policy
Number of felons ineligible to vote as percent of state population	Correlates of State Policy
Online registration	MIT Election Lab
Opinion-policy difference (economic)	Caughey and Warshaw 2018
Opinion-policy difference (social)	Caughey and Warshaw 2018
Percent of eligible voters who register	MIT Election Lab
Postelection audit required	MIT Election Lab

(continued)

TABLE 7.1. (*continued*)

Indicator	Source
Protections against compelling reporters to disclose sources	Correlates of State Policy
Provisional ballots cast	MIT Election Lab
Provisional ballots rejected	MIT Election Lab
Registration or absentee ballot problems (off-year)	MIT Election Lab
Registration or absentee ballot problems (on-year)	MIT Election Lab
Registrations rejected	MIT Election Lab
Repealed death penalty	Correlates of State Policy
Restrictions on voter reg. drives	Brennan Center
Same-day registration	Grumbach and Hill, forthcoming
State allows currently incarcerated to vote	National Conference of State Legislatures
Three strikes	Grumbach 2018
Truth in sentencing	Grumbach 2018
Turnout of voting-eligible population	MIT Election Lab
Under- and over-votes cast in an election	MIT Election Lab
Voter ID (any)	Grumbach and Hill, forthcoming
Voter ID (strict)	Grumbach and Hill, forthcoming
Voters deterred because of disability or illness (off-year)	MIT Election Lab
Voters deterred because of disability or illness (on-year)	MIT Election Lab
Voting wait times	MIT Election Lab
Website for absentee status	MIT Election Lab
Website for precinct ballot	MIT Election Lab
Website for provisional ballot check	MIT Election Lab
Website for registration status	MIT Election Lab
Website with polling place	MIT Election Lab
Youth preregistration	National Conference of State Legislatures

The State Democracy Index covers the years 2000 through 2018. On the one hand, the shortness of this time period is a limitation. However, there are serious challenges to creating a measure of state democracy that covers both the contemporary period and earlier eras, such as the Jim Crow period, which featured overwhelmingly greater variation in democratic performance across states.²³ By limiting the State Democracy Index to the past two decades, we

23. This challenge is similar to estimating the median legislators' ideal point in the pre—and post—civil rights eras. Post-1960s legislative contestation was over a much smaller range of the ideological space when it comes to civil rights (Caughey and Schickler 2016).

capture an era of important contestation over American democracy while avoiding bridging between time periods for which there is very different data availability and, more importantly, potentially incomparable terms of civil and human rights.

Measurement Models

For our main State Democracy Index measure, we model democracy as a latent variable (Treier and Jackman 2008). This latent variable analysis lets observed relationships between the democracy indicators determine how each indicator should affect states' democracy scores. This strategy uses a model to create an "ideal point" on a latent dimension for each state-year that best predicts the real observed democracy indicators data. In particular, I use Bayesian factor analysis for mixed data because the democracy indicators may be binary (e.g., same-day voter registration), ordinal (e.g., disenfranchisement of all, some, or no felons), or continuous (e.g., legislative district efficiency gap) (Quinn 2004). The model is based on the equation below. In particular, the distribution of democratic performance for state s in year t , y_{st} , is a function of the state's latent democratic performance for that year, θ_{st} , as well as the democracy indicator's discrimination parameter β_j and difficulty parameter α_{jt} .²⁴ Subscript j denotes different indicators, which are analogous to test questions in the IRT framework. In this equation, N_j is a normal distribution with j dimensions (as there are j democracy indicators). Ψ is a $J \times J$ variance-covariance matrix:

$$y_{st} \sim N_j(\beta_j \theta_{st} - \alpha_{jt}, \Psi)$$

The main benefit of this factor analysis is that the measure requires little in the way of assumptions from me about how any particular indicator should affect democracy scores.²⁵ However, this comes at the cost of some loss of control; in certain circumstances, the estimated parameters for democracy indicators can be "wrong" in theoretical and substantive terms. Whether or

24. In order to maintain a constant substantive interpretation of how "democratic" a given indicator is across time, I model time-invariant difficulty parameters in contrast to the policy liberalism measure of Caughey and Warshaw (2016).

25. Bayesian latent dimension models like this one require the modeler to constrain the parameter space. I do this by assigning a random set of 10 indicators a positive or negative difficulty parameter based on whether it is theoretically democracy expanding or contracting (for a similar application to state policy liberalism, see Caughey and Warshaw 2016).

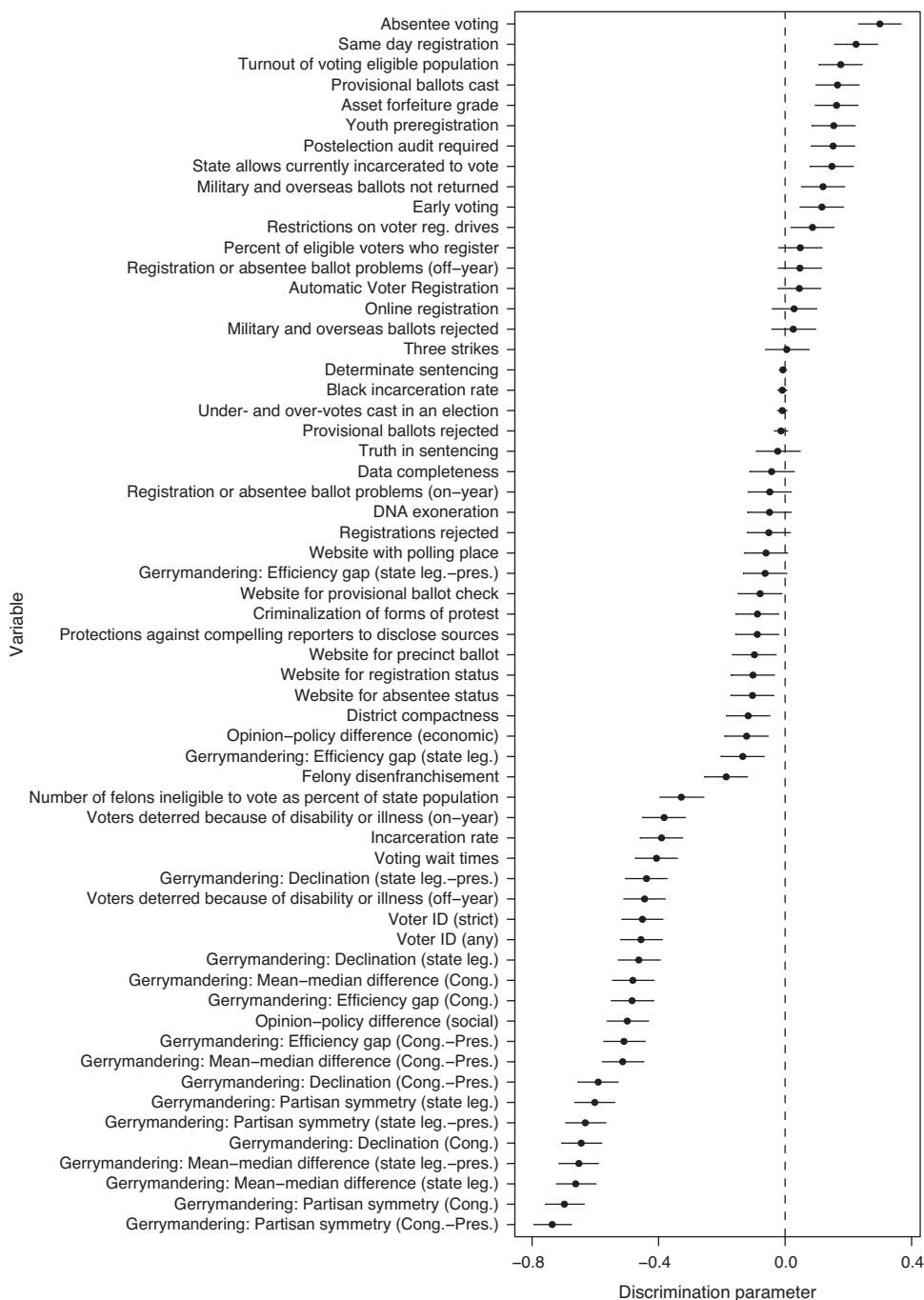


FIGURE 7.1. Factor Loadings of Democracy Indicators.

Note: Discrimination parameter estimates and Bayesian credible intervals for indicators used in the State Democracy Index.

not you consider this a serious problem is dependent on whether you philosophically interpret these “errors” as measurement error or bias.²⁶

Figure 7.1 shows the discrimination parameter estimates, β_j , for democracy indicator j . In short, the discrimination parameters represent the slope of the relationship between an indicator and a state’s latent democracy performance score. Indicators with positive discrimination parameters *increase* a state’s democracy score, whereas items with negative parameters *decrease* them.²⁷

The discrimination parameters in figure 7.1 suggest that a small number of indicators do not load well onto the latent democracy dimension (discrimination parameters close to zero). Although some indicators related to the carceral state, such as state incarceration rates and asset forfeiture ratings, load onto the democracy index well, others, such as three strikes laws and Black incarceration rates, are orthogonal. This is suggestive evidence that authoritarianism related to policing and incarceration might be a separate dimension of state democracy. A separate carceral authoritarianism dimension would be consistent with the results presented in chapter 3 showing that, in contrast to many other policy areas (e.g., health care or gun control), criminal justice policy in the states has not shown much polarization by party.

The item parameters in figure 7.1 inform us about the dimensionality of state democratic performance. When item parameters do not conform to theory, one solution is to directly impose item parameters on the indicators rather than model them. To do so, in addition to our Bayesian factor analysis measure, we use simple additive indexing to create an alternative democracy measure. In the additive index, we weight each democracy indicator equally by range scaling each to the $[0,1]$ interval and then take the state average across all the indicators. Policies that are democracy contracting, such as felony disenfranchisement, are reverse coded. This is equivalent to adding up all of a state’s democracy-expanding policies and then subtracting the sum of democracy-contracting policies (again, similar to the measurement strategy used in chapter 3). The additive measures used in the main analyses weight each indicator equally. We provide robustness checks with this additive

26. It is also worth noting that error in these democracy measures will reduce the precision of hypothesis tests, but because I use these democracy measures as dependent variables, this will not induce bias or inconsistency (among many sources, see Angrist and Pischke 2008).

27. Not shown here, difficulty parameters α_j are intercepts that scale the relationships between indicators and democracy scores.

measure in the appendix, and the results are very similar to those with the “data-driven” Bayesian measure.

We test the validity of the State Democracy Index in different ways. We check construct validation by comparing our measure to measures of related concepts. To our knowledge, the closest analogue to our measure is the Cost of Voting Index (COVI) from Li, Pomante, and Schraufnagel 2018, which is based on seven state electoral policy variables in presidential election years. State democracy, as a concept, is related to the cost of voting. We therefore check our measure’s convergent validity by estimating its correlation to this previous measure in figure A.2, finding a moderately strong correlation of -0.62 (higher values of COVI indicate greater cost of voting). We also show that our measure is positively correlated with state-level turnout of the voting-eligible public in figure A.2. We unfortunately have little opportunity to test for convergent validation because of the lack of existing measures of overall state-level democratic performance. There is scholarly interest in measuring subnational democratic performance at the (see Giraudy 2015; McMann 2018), and a small number of quantitative measures of democracy within other countries’ political subunits (Harbers, Bartman, and van Wingerden 2019), but we have not found such a measure of democratic performance focused on the fifty states.

In the next sections, we investigate descriptive trends in state democratic performance.

Trends in State Democracy

With the State Democracy Index in hand, I first explore variation between states, and within states across time, in democratic performance. Figure 7.2 shows a map of state scores in the year 2000 (left panel) and in the year 2018 (right panel). (For ease of display, I average a state’s *State Electoral* score and *State Democracy* score; as each score can be estimated with additive indexing or factor analysis, this means I am averaging four scores for each state in 2000 and again in 2016.)

The maps in figure 7.2 show some clear regional variation, especially in 2018. States on the West Coast and in the Northeast score higher on the democracy measures than states in the South. New Mexico, Colorado, and some midwestern states also have strong democracy scores.

The maps also show within-state change during this time period. States like North Carolina and Wisconsin were among the most democratic states in the

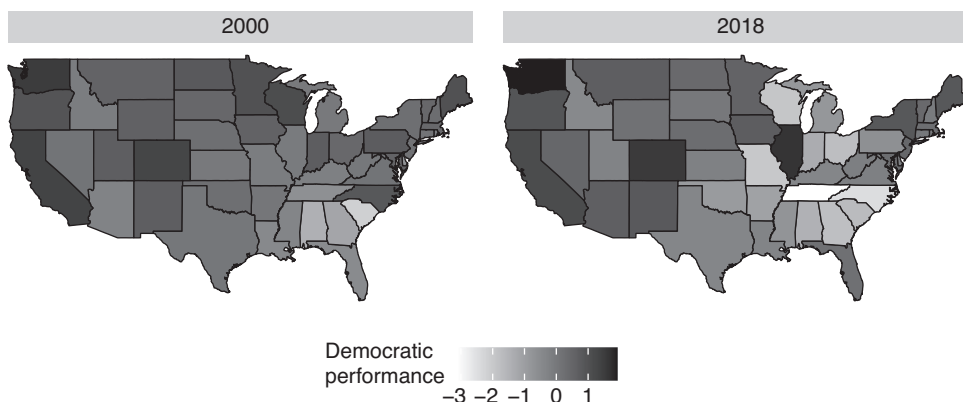


FIGURE 7.2. Democracy in the States, 2000 and 2018.

year 2000, but by 2018 they are close to the bottom. Illinois and Vermont move from the middle of the pack in 2000 to among the top democratic performers in 2018.

Figure 7.3 highlights one case of major change in democratic performance, North Carolina. While the state was notoriously difficult to democratize in the civil rights period (Mickey 2015)—it maintained its Jim Crow literacy tests for voting until the 1970s—North Carolina had become a leader in expanding access to voting during the late 1990s and early 2000s. The state had expanded opportunities for early voting and implemented policies to expand voter registration, such as same-day registration and pre-registration for youth. Voter turnout had increased by over 10 percentage points on average during this time.

But a major shift occurred after the Republican Party won control of both legislative chambers in 2010. Beginning in 2011, North Carolina made a series of changes to its election laws and procedures. The state redrew its legislative district boundaries. The new districts, which received rapid condemnation from Democrats and civil rights groups, clearly advantaged white and Republican voters. In 2018, for example, Republicans won about 49.3 percent of the two-party vote in North Carolina—but this *minority* of votes from the electorate translated to fully 77 percent (10 of 13) of North Carolina's seats in Congress. Gerrymandering experts such as Christopher Warshaw have called North Carolina's districts "the most gerrymandered map in modern history." After electing a Republican governor in 2012, the unified Republican government then implemented a strict voter ID law and curtailed early voting laws

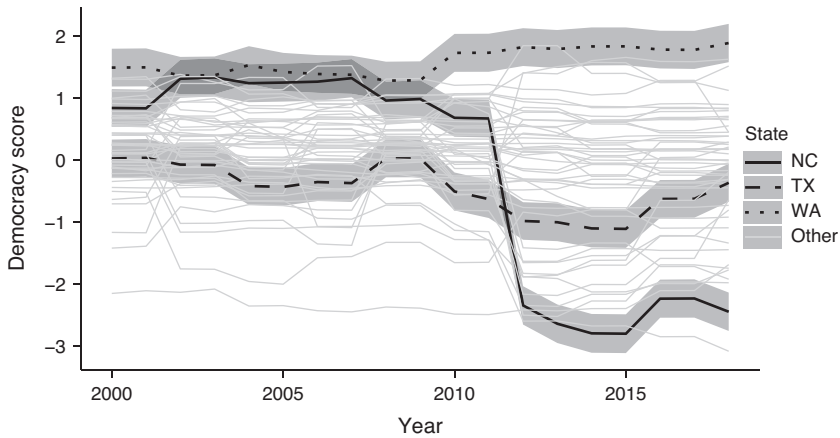


FIGURE 7.3. The Weakening of Democracy in North Carolina.

Note: Lines represent the State Democracy Index scores for states (2000–2018). The solid black line represents North Carolina, the dashed line represents Texas, and the dotted line represents Washington. Shaded ribbons are Bayesian credible intervals.

in areas with heavier concentrations of Black voters. These changes are reflected in figure 7.3.

Figure 7.4 shows trends in state democracy by party, with the solid line representing unified Republican states, and dotted and dashed lines representing Democratic and divided states, respectively. The states polarize by party over this time period: the average Democratically controlled state becomes more democratic, while the average Republican-controlled state becomes less democratic.

But regardless of the measure, the groups of states controlled by each party change over this time period; we do not know from figure 7.4 whether Republican states are becoming less democratic, or less democratic states are becoming more Republican. The partisan relationships could also be confounded by our other potential causes of democratic changes: competition and polarization. In the next chapter I look to within-state analysis to examine whether these forces influence democratic performance.

Conclusion

Despite their constitutional centrality for democratic institutions, there has been little systematic measurement of how state governments are performing as stewards of democracy. This chapter builds upon a foundation from

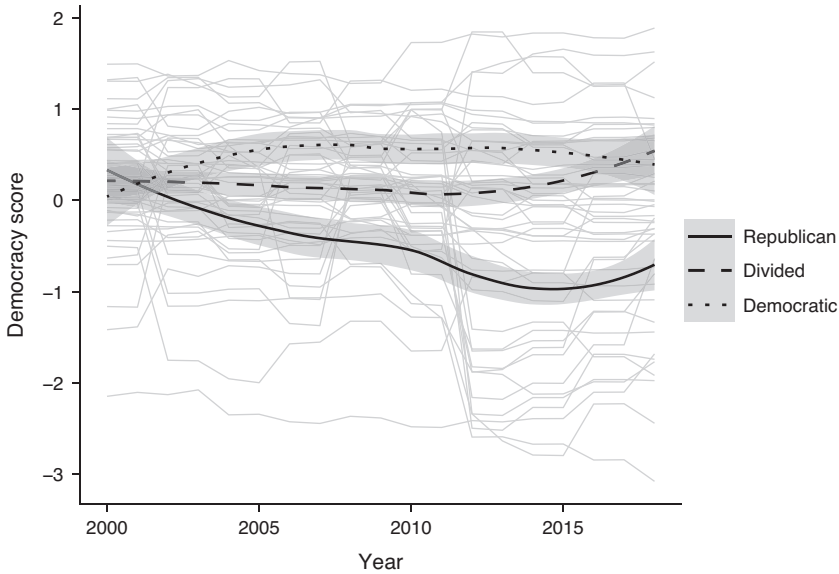


FIGURE 7.4. Democracy in the States by Party Control of Government.

Note: Plot shows average State Democracy Index scores for states under unified Democratic (dotted line), divided (dashed line), and unified Republican (solid line) control. Shaded ribbons are 95 percent confidence intervals.

multiple traditions of scholarship—democratic theory, comparative cross-national analysis, historical research on race in the United States, among others—to develop measures of dynamics in American democracy across geography and time.

The resulting State Democracy Index captures the expansion and contraction in state-level democracy between 2000 and 2018. The fifty states have been measured and ranked extensively on concepts such as educational performance, business climate, and libertarian freedom (Sorens, Muedini, and Ruger 2008). Yet they have not been measured in terms of democratic performance. I hope that the State Democracy Index proves useful for scholars seeking answers to questions about the causes and consequences of democracy beyond the scope of this book, such as the microfoundational roles of interest groups or mass attitudes. On a more somber note, the measures may also prove useful in case of impending democratic crisis.

Our measure opens up new opportunities for research on questions related to representation and democracy, as well as federalism and state and local politics. Scholars might be interested in investigating the role of interest groups

or money in politics on state democratic performance (Hertel-Fernandez 2016; Anzia and Moe 2016), perhaps by exploiting variation in state campaign finance policy (La Raja and Schaffner 2015) or election timing (Anzia 2011). Others might study how state democracy is affected by declining state and local politics journalism (Moskowitz 2021), or by voters' attitudes toward democratic institutions (Welzel 2007; Ahlquist et al. 2018; Graham and Svobik 2020; Miller and Davis 2021). There is especially great potential for behavioral scholars of race and ethnic politics to investigate the relationship between racial attitudes, attitudes toward democracy, and state democratic performance (e.g., Mutz 2018; Weaver and Prowse 2020; Jefferson 2021). Like comparative and political economy scholarship on whether "democracy causes growth" (Acemoglu et al. 2019), scholars can also use the State Democracy Index as an explanatory variable to study the effect of democratic performance on economic performance, socioeconomic outcomes among residents, and public attitudes such as trust. Comparative scholars can use our measurement strategy to create new measures of democratic performance in subnational units in one or more other countries, potentially constructing comprehensive cross-national measures of subunit democracy in political federations.

In contrast to my measures, cross-national measures of democracy sometimes cover much longer stretches of time. V-Dem, for instance, measures democratic performance for countries as far back as 1789—though this is not without its challenges (e.g., Reconstruction, a period of rapid expansion and then contraction of rights for Black Americans, is barely a blip on the U.S. V-Dem trend). Still, it is a worthy goal to construct a State Democracy Index that covers the transformational changes to the franchise, civil liberties, and other components of democracy that occurred in earlier periods of U.S. history. Alexander Keyssar (2000) and others have engaged in this kind of historical analysis of changes in voting rights but without this kind of systematic measurement strategy.

Perhaps more importantly, a longer time frame would contextualize the magnitude of recent shifts in state-level democracy. This chapter provides clear evidence of important changes in democratic performance, such as the rapid decline of democracy in states such as North Carolina since 2010. But these recent changes have occurred on a narrower range of the democracy dimension than those in earlier periods, when, for example, states differed in terms of the legality of slavery and the female franchise. Despite some troubling examples in state-level democracy in recent years, they do not come close to the profound differences in regime type that existed between states in the eras

before the twentieth-century civil rights period. At the same time, true democratic collapse is likely to be presaged by the kinds of democratic backsliding described in this chapter—which can entrench minority rule, curtail dissent, and limit participation in democratic institutions.

The State Democracy Index suggests that there have been dramatic shifts in democratic performance in the American states over this time period. In some states, democracy grew in inclusive ways, expanding access to political participation, reducing the authoritarian use of police powers, and making electoral institutions more fair. In other states, however, democracy narrowed dramatically, as state governments gerrymandered districts and created new barriers to participation and restrictions on the franchise.

As Philip Rocco (2021, 301) writes, “While uneven subnational democracy is preferable to a situation in which territorial governments are evenly undemocratic, the existence of undemocratic outliers nevertheless helps to undermine democracy as a whole.” Slavery, Jim Crow, and other forms of subnational authoritarianism affected the political economy of the North and the U.S. as a nation; though less barbaric in form, democratic backsliding in North Carolina and Wisconsin similarly affects democracy in the U.S. as a whole. State authorities administer elections; they are the primary enforcers of laws; they determine in large part who can participate in American politics, and how. The policy and judicial landscapes have grown increasingly favorable for policy variation across states in recent years. As a consequence, states may be increasingly important to trends in democracy across all institutions within American federalism. Political scholars, observers, and participants should pay close attention to dynamics in state democracy.

In the next chapter, I use the State Democracy Index to test the predictions of long-standing theories of the forces that underlie democratic expansion and contraction: (un)competitive party systems, polarization, racial threat, and the interests of groups in party coalitions.